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The quest for order among Awlad Ali of the Western Desert of Egypt

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CASE #1: The Case of the Broken Rope • CASE #2: The Case of the Curious Neighbor

So, the bloodmoney was divided into two sections, one to be paid by Hemeida, and the other to be the responsibility of the rope, which meant that the victim's relatives only took home half of the bloodmoney.

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CASE #2: The Case of the Curious Neighbor

This is the case of 66-year-old Selouma whose barley land bordered that of Muftah, a distant member of the same tribe. A small area of rocky land separated the two areas. Throughout the time that Muftah was preparing his land for barley cultivation, Selouma used to sit on the dividing rocks, observing his neighbor work on his land and making jokes about the amount of time and effort Muftah was putting into his land, especially when it looked like a dry year, anyway, and no barley would be cultivated. For more than a week Muftah tolerated his neighbor's remarks. "I always said to myself, 'Don't follow the devil... He is an old man and doesn't know what he is saying.' But that day I could not take it any longer. My wife and children were sick, and I didn't have any money to bring them medicine or even food. I wanted to finish

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preparing the land because it looked like it was going to rain that day. I went to the area I was working on when Selouma started his jokes. I was mad. I took a small stone and threw it at him to scare him and make him stop. The stone hit his leg. It was a small stone, and I didn't think it would harm him. Actually, he stood on his ■ 155 feet after that and left." It seems that later the wound got infected. Six months after the incident, Selouma was taken to the hospital with an infected wound, and three days later he died from that infection. Selouma's son, Ali, demanded that Muftah pay a full bloodmoney (L.E. 400) for the death of his father, since the death was directly caused by the wound inflicted by Muftah. Muftah denied the charges and claimed that the infected wound which caused the death of Selouma was not the one inflicted by the stone. Mediations continued for some time, and when no agreement was achieved, the aqilas of the two baits to which the parties belonged declared that the decision should be made by the oath which Muftah had to take if he insisted on his claims that the wound was not caused by his action. Since the case involved the life of a man, Muftah had to be supported in his oath by fifty-five adult male members of his 'amar, or 'eila. In accordance with the Daraieb, the selection was done by members of Selouma's Bait who also selected the tomb of the saint where the oath would be undertaken. On the date the oath was to be taken, the disputing parties, as well as all the notables of friendly tribal segments who were invited to witness the oath, went to the tomb of the saint. As they started with the procedures, two of Muftah's cousins who were to support him in the oath and his uncle refused to swear on the grounds that they were not sure that Muftah was telling the truth and therefore could not subject themselves to the supernatural hazards of taking a false oath. Attempts by other members who were to support Muftah were made to force the three men to swear, since their refusal meant that the bloodmoney ■ 156 was to be paid unconditionally and consequently would cost all members of the amar; but all these attempts failed. At this point, there was no doubt on the part of the attending crowd about Muftah's responsibility for the death of Selouma. The question was, how much had he to pay. The amount requested by Selouma's son was that for "intentional" killing on the basis that Muftah had willfully thrown the rock knowing that it might harm Selouma, especially considering his age.

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